

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 8, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal and Jeff White. Absent: Dicky Shanor. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Case, and pursuant to support received by Mr. Cook and Mr. Luna, Agenda Item #16 was removed from the Consent Agenda. Upon request by Mr. Case, and pursuant to support received by Mr. Cook and Mr. Luna, Agenda Item #22 (a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Special Meeting of the Governing Body on March 20, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Regular Meeting of the Governing Body on March 25, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, all of Lots 6 and 7, Block 1, and all that 16’ alley located in Block 1, Countryside Addition, Laramie, County, Wyoming, (located southwest of the intersection of Countryside Avenue and Whitney Road). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4264)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning District Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County AR Agricultural Residential to CB Community Business for all of Lots 1, 2, 5, 6, 7, and 8, Block 1 and all of Lots 2, 3, and 4, Block 2, Countryside Addition, Laramie County Wyoming, (located south of Countryside Avenue,

west of Whitney Road). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4265)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, all of FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive). Dr. Kay Sheehan requested postponement of the annexation due to water retention concerns in the area and expressed concern related to flooding and maintenance of Broken Arrow Rd. Vicki Nemecek, Public Works Director, provided information regarding gravel road maintenance in the annexation area. Glenn Connor expressed concerns regarding flooding in his neighborhood which is within a mile of the requested annexation area. He noted there has been an increase in flooding over the years and expressed the importance of addressing the concern. Mr. Connor explained, upon inquiry, Lindbloom Ct. drainage hasn’t been addressed. Upon inquiry, Dr. Sheehan stated flooding occurs on Broken Arrow Rd. and the road doesn’t seem to receive as much maintenance as it did previously. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Gene McDonald, agent for the applicant, explained his professional background upon inquiry, stating he has spent significant time working in hydrology and he believes issues brought forth regarding storm drainage in the area are valid. He stated requirements for peak discharge are in place and may help alleviate drainage concerns. Discussion topics included: designation of drainage area, future development of the land, City and County involvement to address drainage concerns and long-standing drainage issues in the area. Mayor Orr voiced concern for inheriting drainage issues that would become the City’s responsibility to maintain. Mr. McDonald advised the annexation won’t contribute to the existing drainage issues as they are south of the proposed development and that the area of concern is in a county pocket. Dr. Sheehan voiced concern of the project being piecemealed and not knowing the impact until completion of the development and requested Broken Arrow Rd. be made into a gravel road. Upon inquiry, County Commissioner Amber Ash advised the road receives limited maintenance due to allocation of resources based on use, traffic and other factors. She noted water tables tend to be higher on the south side of town and advised she will research the drainage concerns. Further comments included: Condition of Southwest Drive and lack of funding to address problem areas, drainage in the annexation area, maintenance of Broken Arrow Rd., annexation impact not directly related to flooding and maintenance concerns, support for the annexation, platting of the property, piecemeal annexations and the need to develop south Cheyenne. Upon inquiry, Amy Allen, City Engineer, explained there aren’t any plans for drainage studies in the annexation area, however, areas near Crow Creek are being reviewed for utilization of FEMA grants in conjunction with the County to improve flooding. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr voting “no”. (#4266)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning District Established, and Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, amending the zoning classification for a portion of the southeast quarter of Section 11 and the northeast quarter of Section 14 in Township 13 North, Range 67 West from the Overland Trails Planned Unit Development (PUD) to the CFD Park-N-Ride PUD for the 27.69-acre Lot 1 of the CFD Park-N-Ride Subdivision in the City of Cheyenne, Laramie County, Wyoming (located west of Southwest Drive, north of College Drive, and adjacent to I-25). Glenn Connor offered suggestions to help

alleviate traffic concerns in the area of the Park-N-Ride and spoke in support of the ordinance. Dr. Kay Sheehan requested landscaping requirements in the area. Brad Emmons, AVI Engineering, P.C., agent for applicant, explained letters requesting feedback relating to landscaping were sent to adjacent property owners and that no responses were received. He expressed concern for maintaining landscaping and explained they are looking into working with the Conservation District to acquire trees for the area. It was noted zone change applicants can write their own requirements for a PUD. Mr. Emmons explained landscaping wouldn't be visible as it would be behind houses. Mary Garcia voiced concerns over various aspects of the project. Upon inquiry, information was provided regarding entrance and exit locations and a future easement for emergency vehicle access. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". (#4267)

ORDINANCE – 3rd READING – Amending Chapters 5.48, Detective, Patrol and Guard Service Businesses, 5.52, Massage Establishments, and 5.72, Public Transportation, within Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. (#4268)

ORDINANCE – 2nd READING – Amending Chapter 10.56, Handicapped Parking Spaces, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Joe Chenchar, Assistant City Attorney, explained the amendment is to clarify the location of application submittal. Dr. Rinne moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body present.

[CA] RESOLUTION – Adopting the Wyoming Retirement System Deferred Compensation Plan for the benefit of full-time employees of the City of Cheyenne, Wyoming, and allowing for automatic enrollment of new full-time employees. Motion (per Consent Agenda) carried. (#5984)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the CFD Park-N-Ride Subdivision for a portion of the southeast quarter of Section 11 and the northeast quarter of Section 14, Township 13 North, Range 67 West, situated in Cheyenne, Laramie County, Wyoming (located east of I-25, west of Southwest Drive, south of Swan Ranch Road, and north of College Drive). Dr. Rinne moved to adopt, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body present. (#5985)

RESOLUTION – Authorizing the Mayor to enter into a Memorandum of Understanding with the Governing Bodies of other local governments that are affected by the proposed Roundhouse Wind Energy Project at the Belvoir Ranch pursuant to the Wyoming Department of Environmental Quality Industrial Siting Regulations. Alessandra McCoy Fakelman, Assistant City Attorney, advised the resolution is to request certain monetary reimbursements for unmitigated costs for City services related to development of the Wind Energy Project at the Belvoir Ranch. Upon inquiry, Ms. McCoy Fakelman explained monetary reimbursement will not come from revenue funds from the project. County Commissioner Amber Ash stated meetings have been held with Laramie County entities who are anticipating unmitigated monetary impact from the project.

She provided information on the proposal that will be presented to the Industrial Siting Council. Upon inquiry, Ms. Ash explained signatures and letters detailing the request from participating entities are being obtained and advised requests will include monetary reimbursement, equipment, fire trucks, communication towers and lodging taxes. Mr. White moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present. (#5986)

RESOLUTION – Proclaiming the two-block radius around the City’s east parking lot at 17th Street and Warren Avenue as Cheyenne’s Downtown Restaurant District. Dr. Rinne announced there was no recommendation on the item from Public Services Committee. Dr. Rinne moved to adopt, seconded by Mr. White. Mr. Laybourn provided a presentation related to downtown restaurants, merchants and various sidewalk, curb and gutter areas downtown that are in need of repair. He explained there isn’t a funding mechanism in place to address maintenance downtown and provided information on the purpose of the resolution noting there are no expenses related to the resolution. Concern was expressed related to the intention of the resolution and not highlighting restaurants in all areas of town. Mr. Case moved to amend by designating in Wards 2 and 3 - Dell Range and the Sportsman’s Warehouse and Gold’s Gym strip mall areas as commercial zones and the areas of Sunrise and Sun Valley as residential districts for curb and pavement repairs, seconded by Mr. Luna. Discussion followed and included the following topics: need for downtown improvements and revitalization, opposition of the amendment, responsibility of curb and gutter repairs downtown, shared concern and appreciation for a vital downtown area, resolution providing a tool that can be used with restaurant tours and downtown property owners, 6th Penny overage funds being utilized for downtown maintenance and the City’s maintenance responsibilities. Motion to amend failed. Voting “yes” – Mr. Case and Mr. Luna. Voting “no” – Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mayor Orr, Dr. Rinne, Mr. Roybal and Mr. White. Further discussion included appreciation for the resolution as a statement of support for the downtown area, funding required for maintenance, City’s possible participation in future repairs and the possibility of utilizing state grant funding for downtown maintenance. A point of order was raised related to voicing support for the resolution without first turning over duties of the Chair. Motion carried. Voting “yes” – Mr. Esquibel, Mr. Laybourn, Mayor Orr, Mr. Roybal and Mr. White. Voting “no” – Mr. Case, Mr. Cook, Mr. Luna and Dr. Rinne. (#5987)

[CA] RESOLUTION – Certifying that the Governing Body of the City of Cheyenne supports the application of the Town of Burns to be submitted to the State Loan and Investment Board by the Board of Commissioners of Laramie County for 2015-2016 Countywide Consensus Block Grant funds in the amount of \$18,739.00 to replace the Community Center roof-top heating and air conditioning unit – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, situated in a portion of the SW¼ NE¼, Section 36, Township 14 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located at the southwest corner of Talbot Court and Cribbon Avenue) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Calling for an ADA Compliance Evaluation and Transition Plan for the City of Cheyenne Municipal Building – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CAJ] Preliminary Plat for Harmony Valley, 1st Filing, a plat of a portion of the S½ of Section 7 and the SE¼NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne Laramie County, Wyoming (located north of and adjacent to W. College Dr., west of Walterscheid Blvd.) – referred to Public Services Committee.

Contract between the City of Cheyenne and Goat Green, LLC, Wellington, Colorado, for vegetation management along Dry Creek and Crow Creek (2015-2018 1% Sales Tax). Sam Berta, Staff Engineer, requested a postponement due to another vendor expressing interest in the project. Mr. Berta explained, upon inquiry, the City has only been aware of one vendor that provides this type of service in the community and postponing the item won't negatively impact the service start date as the schedule allows for flexibility. TJ Barttelbort, Purchasing Manager, City Treasurer's Office, explained the contract has been advertised in the newspaper once as a sole source project and if the contract is disputed, the bid process can be utilized. Upon inquiry, Mr. Berta explained the following: Possible licensing requirements of the vendor, formal bid process was not utilized as it was considered a sole source contract, sole source contract publication requirement was not done initially and that no further communication with Goat Green, LLC has occurred. Mr. White moved to approve in the amount of \$100,000.00, seconded by Mr. Laybourn. Dr. Rinne moved to postpone to April 22, 2019, seconded by Mr. Case. Upon inquiry, Mr. Berta explained the contract has been advertised once and will be advertised again meeting the requirement of advertising twice. Mr. Berta noted he advised the additional interested vendor could attend the upcoming Finance Committee meeting. Comments were made related to the importance of utilizing a qualified business and in opposition of the postponement. Motion to postpone carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Luna, Dr. Rinne and Mr. White. Voting "no" – Mr. Laybourn, Mayor Orr and Mr. Roybal.

[CAJ] Professional Services Agreement between the City of Cheyenne and Plan One / Architects, Cheyenne, Wyoming, for City Municipality Re-Roofing Services for the Aquatic Center, Fleet Maintenance Facility and Parks Maintenance Shop (Capital Improvement Plan (CIP) funding) – referred to Finance Committee.

[CAJ] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned land and buildings for parking, camping, and other activities during the 2019 Cheyenne Frontier Days celebration – referred to Finance Committee.

[CAJ] Memorandum of Understanding between the City of Cheyenne Police Department and the Laramie County Sheriff's Department for EOD, SWAT and CNU Operations and law enforcement extraterritorial assistance and activities – referred to Finance Committee.

[CAJ] Contract Modification #2 to Contract No. 6932 between the City of Cheyenne and Asbestos & Technical Services, Cheyenne, Wyoming, for asbestos abatement services for 2247 East 19th Street (2015-2018 1% Sales Tax funding) – referred to Finance Committee.

[CAJ] Consideration of Bid #E-15-19 for furnishing 95 gallon and 65 gallon automated refuse carts for the Sanitation Division (Solid Waste fund). Motion (per Consent Agenda) carried (accept

bid submitted by Otto Environmental Systems North America, Charlotte, NC, in an amount not to exceed \$132,034.00).

[CA] Consideration of Bid #S-11-19 for a contract between the City of Cheyenne, and Simon Contractors, Cheyenne, Wyoming, for the Smalley Park Greenway Reconstruction Project (Greenway Maintenance fund). Motion (per Consent Agenda) carried (accept bid submitted by Simon Contractors, Cheyenne, WY, in an amount not to exceed \$119,190.30). (#6975)

[CA] Consideration of Bid #S-12-19 for a contract between the City of Cheyenne, and Reiman Corp., Cheyenne, Wyoming, for the Evers Boulevard Reconstruction Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid submitted by Reiman Corp., Cheyenne, WY, in an amount not to exceed \$7,453,668.50). (#6976)

[CA] Consideration of Bid #S-14-19 for a contract between the City of Cheyenne, and American Contracting of Wyoming LLC, Cheyenne, Wyoming, for the Jr. League Dugout Roof Replacements and Masonry Repairs Project (Reserves carryover). Motion (per Consent Agenda) carried (accept bid submitted by American Contracting of Wyoming, LLC, Cheyenne, WY, in an amount not to exceed \$60,800.00). (#6977)

[CA] Consideration of Bid #E-19-19 for furnishing bituminous asphalt hot mix, tack oil and cold mix on an annual basis (2015-2018 1% Sales Tax funding) – referred to Finance Committee.

Announcement of a Public Hearing to be held April 22, 2019, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for the City of Cheyenne’s Annual Action Plan Fiscal Year 2019 prepared by the Cheyenne Housing and Community Development Office.

Under other business:

Dr. Rinne noted that the motion to adopt the Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for the CFD Park-N-Ride Subdivision for a portion of the southeast quarter of Section 11 and the northeast quarter of Section 14, Township 13 North, Range 67 West, situated in Cheyenne, Laramie County, Wyoming (located east of I-25, west of Southwest Drive, south of Swan Ranch Road, and north of College Drive) passed earlier in the meeting without the recommended motion in its entirety. Dr. Rinne, advising he had voted on the prevailing side, and pursuant to City Code Chapter 2.04, moved to reconsider the motion of the resolution, seconded by Mr. Luna. Charles Bloom, Planning and Development Director, explained the appropriateness and importance of reconsidering the resolution with the recommended motion. Motion to reconsider carried. Voting “yes” – all members of the governing body present. Dr. Rinne moved to adopt with the condition that the revised plat show a southern access easement from Southwest Drive prior to the City signing the final plat, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

Upon inquiry, Amy Allen, City Engineer, provided information on the single source contract process with Goat Green, LLC for vegetation management. She advised staff will

recommend the vendor that is most qualified for the project. Logan Sharpe, Assistant City Attorney, provided information on legal advertising publishing requirements.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:57 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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